

25STCV15517 25STCV15517

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SUPERIOR

COURT OF CALIFORNIA, COUNTY OF LOS ANGELES

Civil

Division

Central

District, Stanley Mosk Courthouse, Department 19

Tentative

Ruling

25STCV15517

PATRICIA

JAMGOTCHIAN, et al. vs DONE! VENTURES, LLC, et al.

August

5, 2026

8:30

AM

NATURE OF PROCEEDINGS:

DEFENDANT DONE! VENTURES, LLC'S MOTION FOR AN ASSIGNMENT ORDER PURSUANT TO CCP
§708.510 AGAINST PLAINTIFF PATRICIA JAMGOTCHIAN.

RULING:

The Motion is granted, as
prayed.

The
Court will sign and file the proposed Order received on July 29, 2026.

Defendant
Done! Ventures, LLC to give notice.

I.
BACKGROUND

The Court incorporates by
reference the Minutes entered on September 10, 2025, granting Defendants' Anti-SLAPP
Motions to Strike, as to Plaintiffs' allegations that Defendants maliciously prosecuted
collection proceedings against sole and separate property, while knowing that it
could not be collected on to satisfy the underlying judgment.

By the Motion, filed July
8, 2026, DONE! VENTURES, LLC (Defendant) moves for an Order assigning the right
to payments due to PATRICIA JAMGOTCHIAN (Plaintiff) from her interests in the
following entities: (a) Olympic Avenue Ventures, Inc.; (b) Olympic Avenue Ventures
Property, Inc.; (c) Rialto Pockets, Incorporated; and (d) Rialto Pockets
Property, Inc., until such time that the March 27, 2025 order for the payment
of attorneys' fees is fully paid, including any additions to the judgment and
post-judgment interest.

The Opposition advocates denying,
including because the Motion relies upon stale evidence, and Plaintiff's
Third-Party Claims to the interests have been denied.

II.
LEGAL STANDARD

"The EYL 'is a comprehensive scheme governing the enforcement of all
civil judgments in California.' Under this scheme, a lien is created on all
nonexempt personal property when the debtor is served with notice to appear for
examination.... 'Except as otherwise provided by law, all property of the
judgment debtor is subject to enforcement of a money judgment.' (§ 695.010,

subd. (a).) However, ‘property of the judgment debtor that is not assignable or transferable is not subject to enforcement of a money judgment.’ (§ 695.030, subd. (a).)” (Juarez v. Ward (2023) 88 Cal.App.5th 730, 735.) “For purposes of the Enforcement of Judgments Law, a judgment creditor is someone ‘in whose favor a judgment is rendered.’” (See § 680.240.)” (Luxury Asset Lending, LLC v. Philadelphia Television Network, Inc. (2020) 56 Cal.App.5th 894, 914.)

California's Enforcement of Judgments Law (EJL) applies to a judgment, and includes orders. (Lucky United Properties Inv., Inc. v. Lee (2010) 185 Cal.App.4th 125, 143–144; Newland v. Superior Court (1995) 40 Cal.App.4th 608, 615; Constellation-F, LLC v. World Trading 23, Inc. (2020) 45 Cal.App.5th 22, 31.)

III.

ANALYSIS

Defendant filed the Motion, as a creditor, for an Order assigning rights to payments of Plaintiff, as a debtor, as to awarded attorneys’ fees. Specifically, Defendant describes the payments as amounts that Plaintiff receives from stock in four corporations running Spearmint Rhino clubs in Los Angeles and Rialto, California.

Plaintiff responds by emphasizing these points:

1.

On July 10, 2026, Judge Kevin C. Brazile issued a Judgment denying Plaintiff’s Third-Party Claims as to the payment rights, inferentially denying the claims.

2.

The Court has discretion and is to consider “all relevant factors” per Code of Civil Procedure section 708.510.

3.

The Motion relies upon payments made for 11 months ending in February 2025, without evidencing current payment rights, but instead relying upon speculation.

Code of Civil

Procedure section 708.510 is a procedure within the Enforcement of Judgments Law (§ 680.010 et seq.) (EJL), allowing judgment creditors to receive involuntary assignments of judgment debtors' interests in payments. (Wanke, Indus., Com., Residential, Inc. v. AV Builder Corp. (2020) 45 Cal.App.5th 466, 475.) The "court may order the judgment debtor to assign to the judgment creditor...." (Code of Civil Procedure §708.510.)

"An assignment order

is a court order assigning to the judgment creditor or a receiver appointed pursuant to CCP § 708.610 et seq.... the debtor's right to payments due from a third person. It is authorized by CCP § 708.510 et seq...." (Cal. Prac. Guide Enf. J. & Debt § 6:1422.5.)

The treatise

summarizes some applicable law, as follows:

[6:1440] Court's discretion to issue order: The court has broad discretion in determining whether to order an assignment, and in fixing the amount to be assigned (subject to the limitations discussed above, ¶ 6:1437 ff.).

The court may consider all relevant factors, including but not limited to:

.

The

reasonable economic needs of a natural person judgment debtor and those supported partly or wholly by the debtor;

.

Payments

the judgment debtor is required to make or that are deducted in satisfaction of other judgments and wage assignments;

.

The amount

remaining due on the money judgment; and

.

The amount
remaining to be received on the right to payment. [CCP § 708.510(c)]

(Id., §§
6:1422.5-6:1448.)

Having read the
Motion, the Court finds that Plaintiff has shown compliance with requirements
of Code of Civil Procedure, sections 708.510 et seq. and 708.610 et seq.

The Court finds that the
proof is sufficiently recent to reasonably infer there are still currently assignable
rights to the payments that properly may be used to satisfy the creditor. In
the underlying case, Plaintiff stated under penalty of perjury that the stock
right was her "sole and separate property". (See Request for Judicial Notice, filed
July 8, 2026, Exhibit A). Even more broadly, Defendant references years of like
payments. (See Reply, 4:16-28.) Normally, appellate courts defer to trial
judges' reasonable inferences from the evidence viewed in light of the whole
record, which are not based on suspicion, speculation, surmise, conjecture,
guesswork, or imagination. (E.g., *In re O.M.* (2026) 120 Cal.App.5th 489,
509.) Moreover, Plaintiff has not filed any contrary documentation to disprove
rights to the payments.

Additionally, there is
no inconsistent ruling against the payment rights. "The same rules apply in
ascertaining the meaning of a court order or judgment as in ascertaining the
meaning of any other writing." (*Mendly v.*
County of L. A. (1994) 23 Cal.App.4th 1193, 1205.) The July 10, 2026 Judgment,
in *DONE! Ventures, LLC vs. Jamgotchian*, case number BC643275, expressly
reasoned that the issues were moot, after levied sums had been applied towards
Judgment satisfaction. "Mootness is sometimes defined in
terms of the court's loss of ability to grant effective relief." (*Breaux v. Agricultural Labor Relations Bd.*
(1990) 217 Cal.App.3d 730, 743.) It is not any determination on the merits.

In summary, the Court
having considered the discretionary and relevant factors pursuant to section 708.510,
decides to order the assignments, as Defendant requests.

IV.
CONCLUSION

Accordingly, the Court grants
the Motion, as prayed.